

LAW OFFICES

COPY

CHATTANOOGA, TENNESSEE 37402

May 5, 1992

Mr. [REDACTED]

Dickson, TN 37055

In re: Estate of Lou Anna Lawhorn

Dear [REDACTED]:

This letter confirms our May 1, 1992 telephone conference and provides additional information in support of our client's position.

In Eddie Lawhorn's April 8, 1992 letter, he indicates there are documents signed by Lou Anna Lawhorn permitting the pledge of her \$10,000.00 CD as additional security to assist Freddie in purchasing a house. As I told you, I do not believe that the fact Mrs. Lawhorn agreed to pledge her CD to assist Freddie is in any way the equivalent of a gift of that CD to Freddie. Absent some additional documentation indicating another intent, it is our position the CD is an asset of Mrs. Lawhorn's estate which is simply encumbered by Freddie's debt. When the debt is extinguished, the proceeds of the CD should be divided between Eddie and Freddie.

The second point we discussed was the discrepancy between Eddie's total cash calculations of \$144,958.27 and Freddie's total cash calculation of \$137,288.24. After reviewing the information on page 4 of Freddie's April 8, 1992 letter and the second page of Eddie Lawhorn's summary which was sent to you April 6, I identified the differences which are highlighted in pink on the enclosed copy of Eddie's summation.

At the bottom of page 2 of Freddie's letter he discusses the differences between the expenses he claims and the expenses Eddie claims.

On page 3 of the summation provided by Eddie Lawhorn and sent to you on April 6, 1992 there is detail of exactly how the \$8,462.51 was calculated. I made pencil notations of the payees regarding the First Federal account and attached five pages of detailed prepared by Eddie Lawhorn regarding the Redstone Federal Credit Union account. The information ties to the penny.

The last page of Eddie Lawhorn's summation shows exactly the monies distributed to him. Freddie has calculated some \$2,323.61 of excess payments.

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Based on my review of the correspondence and information between Eddie and Freddie Lawhorn, it is clear that Eddie Lawhorn has kept detailed records of his mother's assets in his possession and has furnished those detailed records to you and Freddie. Freddie on the other hand has kept virtually no records, is trying to ignore \$7,670.03 of estate assets which have been reported to him and is trying to appropriate a \$10,000.00 CD to himself.

My review of all the information provided indicates Eddie Lawhorn's calculation of the amount due him, \$14,255.39 is correct. Of that amount Eddie Lawhorn still controls some funds which could be applied toward satisfying that amount. You are holding approximately \$3,900.00 of monies. \$5,000 of the CD pledged as security for Freddie's house loan belongs to Eddie. Even when all those amounts are applied to the amount owed Eddie, there are still additional sums due.

Unless your clients can produce contrary detailed information indicating the error of Eddie Lawhorn's calculations, I see no basis for their continued stalling efforts to close this estate.

Eddie is willing to take the Cleveland note in exchange for Freddie having the Pleasantville property if he can get the other monies owed him.

Rest assured that if it is necessary to file suit against the fiduciaries for breach of their duties, part of the damages will certainly be the additional costs necessitated to force them to comply with the law as they should have originally.

Very truly yours,

ALBERT W. SECOR, P. C.



Albert W. Secor

AWS.sih
Enclosures
cc w/o enc: Eddie T. Lawhorn
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